

Defendants again oppose this motion, in part on the basis that the survey and testimony are not sufficient to permit a second motion for summary adjudication.

While the fifth and sixth causes of action are new to the SAC and therefore could not have been part of the prior motion for summary adjudication, these causes of action add nothing in terms of substance and instead overlap with previously alleged facts and theories. "The declaratory relief statute should not be used for the purpose of anticipating and determining an issue which can be determined in the main action. The object of the statute is to afford a new form of relief where needed and not to furnish a litigant with a second cause of action for the determination of identical issues." (*Hood v. Superior Court* (1995) 33 Cal.App.4th 319, 324 [writ of mandate requiring trial court to deny motion for summary adjudication because party may not select issues, other than duty and punitive damages, implicated in one or more causes of action, amend that pleading to add a cause of action for declaratory relief as to those issues, and then obtain a summary adjudication of the declaratory relief cause of action].)

In any event, as pointed out in the opposition, the scope of the easement is not undisputed. The easement width would not necessarily be 55 feet, as plaintiffs have pleaded. It could be 28', 34', or 40' depending on the size of the development. (Memorandum of Points and Authorities in Support of Opposition, 11:7-21.)

The Court declines to reconsider the prior order issued by Judge Devine. The new motion involves the same legal issues.

The Court declines to rule on the objections because they are not material to the disposition of this motion. (Code Civ. Proc., § 437c (q).)

2. 9:00 AM CASE NUMBER: C24-02209
CASE NAME: PATRICK MORRISSEY VS. ALBERT SEBILIA
HEARING ON SUMMARY MOTION BY CHRISTOPHER ROBERTS AND COURTLY STEVENS
FILED BY:

TENTATIVE RULING:

Before the Court is Defendant Courtly Stevens Roberts and Defendant Christopher Allen Roberts (collectively, "Defendants")'s motion for summary judgment or in the alternative summary adjudication. The Motion relates to Plaintiff Patrick Morrissey and Plaintiff Alexandra Morrissey (collectively, "Plaintiffs")'s Second Amended Complaint for (1) private nuisance, (2) damages for public nuisance, (3) injunctive relief for abatement of nuisance, (4) damages for trespass, (5) diversion of surface waters, (6) diversion of surface water to groundwater, (7) negligence, and (8) declaratory relief.

As a threshold issue, the Court notes that there are procedural defects in both the Notice of Motion and Separate Statement. A separate statement seeking summary adjudication must state verbatim the noticed issues from the notice of motion at the beginning of each issue for summary adjudication. (See Calif. Rules Court, rule 3.1350, subd. (b); *Truong v. Glasser* (2010) 181 Cal.App.4th 102, 118.) Defendants' separate statement fails to comply with this requirement.

Here, Defendants' notice reads as follows:

1. Plaintiffs' First, Third and Fourth Causes of Action are barred because the SAC fails to plead

sufficient material facts to support such causes of action.

2. Plaintiffs' First, Third and Fourth Causes of Action against are barred by the applicable statute of limitations.
3. Plaintiffs' Second Cause of Action for Public Nuisance is barred because Plaintiffs failed to plead sufficient material facts to support such causes of action and fail to plead any public nuisance or public right
4. Plaintiffs' Fifth, Sixth and Seventh Causes of Action are barred because the SAC fails to plead sufficient material facts to support such causes of action.

However, Defendants' Separate Statement is organized by the following issues:

1. Plaintiffs['] damage resulted from upgradient drainage flowing into a swale filled with porous material located on their property.
2. Plaintiffs' Property is located on a steep hillside in an area subject to landslides
3. Plaintiffs and their predecessors failed to take adequate measures to protect their property from damage associated with drainage into the swale and porous fill material located beneath their hillside property.
4. Defendants' property does not overlie the swale and fill material at issue in the SAC
5. Drainage from Defendants' property is de minimis in relation to the watershed at issue and drains away from Plaintiffs' Property
6. Defendants have not altered the direction, amount, or velocity of drainage from their property and drainage has not been altered in over 40 years.
7. Total runoff into the swale and fill material on Plaintiffs' Property comes from all properties within the watershed and not just from adjacent properties of Defendants.

Following these issues, the Defendants include "undisputed material facts" that consist of citations to the SAC and its allegations.

The court's power to deny summary judgment on the basis of failure to comply with California Rules of Court, rule 3.1350 is discretionary, not mandatory. (See *Cadlo v. Owens-Illinois, Inc.* (2004) 125 Cal.App.4th 513, 523; cf. *San Diego Watercrafts, Inc. v. Wells Fargo Bank* (2002) 102 Cal.App.4th 308, 315–316.) In lieu of denying the motion based upon a defective notice and separate statement, the Court elects to treat the motion as one for summary judgment only.

The Court also notes that the law does not allow a "reply" Separate Statement by the moving party. (*Nazir v. United Airlines Inc.* (2009) 178 Cal.App.4th 243, 252 [there is no provision in the statute for a reply separate statement.]; Code Civ. Proc. §437c.) The Court declines to consider Defendants' "Reply to Plaintiffs' Response to Defendants' Separate Statement of Undisputed Material Facts."

Similarly, the Court declines to consider the Supplemental Declaration of Matthew Emrick in Support of Defendants' Reply. (See *San Diego Watercrafts, supra*, 102 Cal.App.4th at p. 313 [additional evidence submitted with Reply cannot be considered unless opposing party has notice and an opportunity to respond].)

For the following reasons, the motion is **DENIED**.

Judicial Notice

“Judicial notice is the recognition and acceptance by the court, for use by the trier of fact or by the court, of the existence of a matter of law or fact that is relevant to an issue in the action without requiring formal proof of the matter.” (*Lockley v. Law Office of Cantrell, Green, Pekich, Cruz & McCort* (2001) 91 Cal.App.4th 875, 882.) “Judicial notice may not be taken of any matter unless authorized or required by law.” (Evid. Code § 450.) Matters that are subject to judicial notice are listed in Evidence Code sections 451 and 452. (See Evid. Code, §§ 451, 452.) “The fundamental theory of judicial notice is that the matter that is judicially noticed is one of law or fact that cannot reasonably be disputed.” (*Post v. Prati* (1979) 90 Cal.App.3d 626, 633.) The burden is on the party seeking judicial notice to provide sufficient information to allow the court to take judicial notice. (*Willis v. State of California* (1994) 22 Cal.App.4th 287, 291.)

The Court rules on Defendants’ requests for judicial notice as follows:

A. Drone Photographs of 14 Cedar Lane and adjacent properties

Defendants have not demonstrated that these photographs are a proper subject for judicial notice. (Evid. Code § 452(c), (h).) Moreover, they have not been properly authenticated by the declaration of a qualified witness or otherwise. (See Evid. Code, § 453, subd. (b) [party seeking judicial notice must furnish the court with sufficient information]; see also *In re Marriage of Pendleton & Fireman* (2000) 24 Cal.4th 39, 47, fn. 6 [denying judicial notice of letters where, among other things, requesting party did not furnish certified copies].) The Declaration of Courtney Stevens Roberts is inadequate to authenticate these photographs. The request for Judicial Notice of Exhibit A is **DENIED**.

B. March 1960, Contra Costa County Tentative Subdivision Map – Tract 2771

While the Court **GRANTS** judicial notice of Exhibit B, it declines to accept its contents as true, or make factual inferences therefrom. (*Yvanova v. New Century Mortgage Corp.* (2016) 62 Cal.4th 919, 924, fn. 1 [judicial notice taken of existence and contents of documents but not disputed or disputable facts stated].)

C. Excerpts of a February 8, 1962 geotechnical report regarding Tract 2771

This report has not been properly authenticated by the declaration of a qualified witness or otherwise. (See Evid. Code, § 453, subd. (b); see also *In re Marriage of Pendleton & Fireman*, *supra*, 24 Cal.4th at 47, fn. 6.) The request for Judicial Notice of Exhibit C is **DENIED**.

D. 1975, Nilsen, T.H., USGS Preliminary Photointerpretation Map of Landslide and Other Surface Deposits of the Oakland East 7-1/2 Minute Quadrangle, Contra Costa and Alameda Counties, California, United States Geological Survey (USGS) Open File Map 75-277-Plate 41, Scale 1:24,000

While the Court **GRANTS** judicial notice of Exhibit D, it declines to accept its contents as true, or make factual inferences therefrom. (*Yvanova v. New Century Mortgage Corp.* (2016) 62 Cal.4th 919, 924, fn. 1 [judicial notice taken of existence and contents of documents but not disputed or disputable facts stated].)

E. 1969-1973 Contra Costa County Building Inspection Reports for proposed pool on 10 Cedar Lane

This document has not been properly authenticated by the declaration of a qualified witness or otherwise. (See Evid. Code, § 453, subd. (b); see also *In re Marriage of Pendleton & Fireman*, *supra*, 24

Cal.4th at 47, fn. 6.) The request for Judicial Notice of Exhibit E is **DENIED**.

F. 1982, Contra Costa County Assessors Map, Map of Trac 2771

While the Court **GRANTS** judicial notice of Exhibit F, it declines to accept its contents as true, or make factual inferences therefrom. (*Yvanova v. New Century Mortgage Corp.* (2016) 62 Cal.4th 919, 924, fn. 1 [judicial notice taken of existence and contents of documents but not disputed or disputable facts stated].)

G. 1991, The City of Orinda 1991 Photo interpretive Landslide Features Map

This document has not been properly authenticated by the declaration of a qualified witness or otherwise. (See Evid. Code, § 453, subd. (b); see also *In re Marriage of Pendleton & Fireman*, *supra*, 24 Cal.4th at 47, fn. 6.) The request for Judicial Notice of Exhibit G is **DENIED**.

H. September 2023, Rogers, J. D., Urban Landslide Hazard Mapping: A Case Study in Orinda, California., AEG Special Publication No. 31. Association of Environmental & Engineering Geologists. (Excerpts)

This document has not been properly authenticated by the declaration of a qualified witness or otherwise. (See Evid. Code, § 453, subd. (b); see also *In re Marriage of Pendleton & Fireman*, *supra*, 24 Cal.4th at 47, fn. 6.) The request for Judicial Notice of Exhibit G is **DENIED**.

I. January 2023 Field Reports from East Bay Municipal Utilities District

This document has not been properly authenticated by the declaration of a qualified witness or otherwise. (See Evid. Code, § 453, subd. (b); see also *In re Marriage of Pendleton & Fireman*, *supra*, 24 Cal.4th at 47, fn. 6.) The request for Judicial Notice of Exhibit G is **DENIED**.

Legal Standard on Summary Judgment

A motion for summary judgment is properly granted only when “all the papers submitted show that there is no triable issue as to any material fact and that the moving party is entitled to a judgment as a matter of law.” (Code Civ. Proc. § 437c, subd. (c).) A defendant may bring a motion on the ground the plaintiff cannot prove one of the required elements of the case or there is a complete defense to the action. (Code Civ. Proc. § 437c, subds. (o)(1), (2) & (p)(2); *Aguilar v. Atlantic Richfield Co.* (2001) 25 Cal.4th 826, 849.)

To carry its initial burden when the motion is directed to the plaintiff’s case rather than an affirmative defense, the defendant must present evidence that either negates an element of the plaintiff’s cause of action or shows that the plaintiff does not possess, and cannot reasonably obtain, evidence necessary to establish at least one element of the cause of action. (*Aguilar*, *supra*, 25 Cal.4th at pp. 853-854.) Only after the defendant carries that initial burden does the burden shift to the plaintiff “to show that a triable issue of one or more material facts exists as to the cause of action or a defense thereto.” (Code Civ. Proc. § 437c, subd. (p)(2).)

Courts “liberally construe the evidence in support of the party opposing summary judgment and resolve doubts concerning the evidence in favor of that party.” (*Dore v. Arnold Worldwide, Inc.* (2006) 39 Cal.4th 384, 389.)

Analysis

This case arises out of a landslide that occurred on and near the homes owned by Plaintiffs and Defendants on or about January 15 through 19, 2023. (SAC at ¶ 15.) As a result of the landslide,

Plaintiffs' home and other improvements were destroyed and their lot severely damaged. (*Id.* at ¶ 16.)

Defendants argue that "Plaintiffs' primary theory of liability for each cause of action as to the Roberts relates to allegations of non-existent drainage from the Roberts' Property." (MSJ at 10:5-6.) They further argue that "the evidence demonstrates that Plaintiffs failed to take reasonable measures to protect their property from drainage runoff especially given their home was constructed over a known swale. On the other hand, the evidence demonstrates that Defendants not only acted reasonably but that their property was not a source of runoff onto Plaintiffs' Property." (*Id.* at 10:16-20.)

With respect to the flow of surface water from an upper landowner, California has adopted a modified version of the civil law rule dubbed the "reasonableness test." (*Keys v. Romley* (1966) 64 Cal.2d 396, 405-406; *Contra Costa County v. Pinole Point Properties, LLC* (2015) 235 Cal.App.4th 914, 929-930.) An upper property owner may be liable if they fail to exercise reasonable care in the use of their property so as to avoid injury to the adjacent property through the flow of surface waters. "The test is whether, under all the circumstances, the upper landowner's conduct was reasonable. This rule of reasonableness applies to both private and public landowners, but it requires reasonable conduct on the part of downstream owners as well. This test requires consideration of the purpose for which the improvements were undertaken, the amount of surface water runoff added to the streamflow by the defendant's improvements in relation to that from development of other parts of the watershed, and the cost of mitigating measures available to both upper and downstream owners. Those costs must be balanced against the magnitude of the potential for downstream damage. If both plaintiff and defendant have acted reasonably, the natural watercourse rule imposes the burden of stream-caused damage on the downstream property." (*Locklin v. City of Lafayette* (1994) 7 Cal.4th 327, 337.) Reasonableness is a factual question "to be determined in each case upon a consideration of all the relevant circumstances, including such factors as the amount of harm caused, the foreseeability of the harm which results, the purpose or motive with which the possessor acted, and all other relevant matter." (*Keys, supra*, 64 Cal.2d at 410.)

In *Sprecher v. Adamson Companies* (1981) 30 Cal.3d 358 (*Sprecher*), the Supreme Court dispensed with the common law rule immunizing landowners from liability for harm caused by natural conditions of their land to persons outside the premises in favor of a rule applying traditional principles of negligence. Ruling that summary judgment had been improperly granted in a case much like this one, where heavy rains triggered a landslide that damaged the plaintiff's land, the *Sprecher* Court rejected the common law distinction between natural and artificial conditions of land. As the *Sprecher* Court explained, "Whatever the rule may once have been, it is now clear that a duty to exercise due care can arise out of possession alone." (*Id.* at p. 367.) "It must [] be emphasized that the liability imposed is for negligence. The question is whether in the management of his property, the possessor of land has acted as a reasonable person under all the circumstances. The likelihood of injury to plaintiff, the probable seriousness of such injury, the burden of reducing or avoiding the risk, the location of the land, and the possessor's degree of control over the risk-creating condition are among the factors to be considered by the trier of fact in evaluating the reasonableness of a defendant's conduct." (*Id.* at p. 372.)

Defendants' motion essentially inverts this test by arguing as a threshold matter that "**Plaintiffs** failed to take reasonable measures to protect their property from drainage runoff[.]" (MSJ at 10:17 [emphasis added].) However, on summary judgment it is Defendants' initial burden to present sufficient evidence to preclude the trier of fact from finding they had acted unreasonably or else establish the Plaintiffs do not possess and cannot reasonably obtain evidence to prove they acted negligently. (*Aguilar, supra*, 25 Cal.4th at pp. 853-854.) The Defendants do not meet their burden on

summary judgment simply by pointing out the “‘absence of evidence to support’ an element of the plaintiff’s cause of action [citation]” (*Id.* at p. 855, fn. 23; see *Kahn v. East Side Union High School Dist.* (2003) 31 Cal.4th 990, 1002-1003.) Absent such proof, the burden on summary judgment does not shift to the Plaintiffs to demonstrate a triable issue of material fact on the question of breach.

The concept of reasonableness is an inherently factual inquiry. (See, e.g., *Sprecher, supra*, 30 Cal.4th at p. 373 [reversing summary judgment where “evidence does not conclusively establish that no rational inference of negligence can be drawn under the circumstances of this case”]; *Jackson v. Ryder Truck Rental, Inc.* (1993) 16 Cal.App.4th 1830, 1838 [breach of duty generally presents a factual question preventing summary judgment].) As *Sprecher* directs, the question of reasonableness in this case requires examination of myriad factors, including, at a minimum, “[t]he likelihood of injury to plaintiff, the probable seriousness of such injury, the burden of reducing or avoiding the risk, the location of the land, and the possessor’s degree of control over the risk-creating condition.” (*Sprecher*, at p. 372.)

The damage to the Plaintiffs’ home, like the damage in *Sprecher*, resulted from a landslide caused by heavy rains, not just flooding resulting from the natural draining of surface waters. (Cf. *Julian v. Hartford Underwriters Ins. Co.* (2005) 35 Cal.4th 747, 759 [rain and landslide are two distinct perils].) The issue of Defendants’ liability thus relates not to their inaction with regard to the natural flow of surface water but to their failure to ensure the stability of the slope on their property. (See *Sprecher, supra*, 30 Cal.3d at p. 373 [trier of fact entitled to consider availability of effective measures for control of slide].)

Under *Keys*, Defendants have a duty to exercise due care in the management of their property. The propriety of summary judgment then turns on the issue of reasonableness (breach of duty). Defendants have not presented any evidence on the issue of their own reasonable management of their property. Instead, their argument is based on their contention that “their property was not a source of runoff onto Plaintiffs’ Property.” (MSJ at 10:19-20.) This contention is not supported by admissible evidence (see Evidentiary Objections, below). Even if the testimonial evidence of Courtly Stevens Roberts that she and her husband “have not made any changes to drainage, nor to any landscaping, or created any new impervious surfaces” (Courtly Stevens Roberts Decl. at ¶ 6) is considered, it does not “conclusively negate” the element of reasonableness, an “often impossibly high” standard of proof. (See, e.g., *Guz v. Bechtel National, Inc.* (2000) 24 Cal.4th 317, 373 (conc. opn. of Chin, J.)

Under the stringent standard for determining a motion for summary judgment set forth in *Aguilar*, Defendants have failed to present sufficient evidence to shift the burden to the Plaintiffs.

Finally, Defendants’ concluding argument that Plaintiffs’ entire action is barred for failure to join necessary and indispensable parties lacks merit. Defendants cite no authority, and the Court is not aware of any, that an alleged failure to join an indispensable party warrants grant of summary judgment in favor of a defendant. Defendants’ reliance on *Thomson v. Talbert Drainage District* (1959) 168 Cal.App.2d 687 is inapt. Defendants have not demonstrated that the relief Plaintiffs seek would injure or affect the interests of a third person not yet joined. The object of Plaintiffs’ Second Amended Complaint is monetary damages and injunctive relief related to stabilization of the area damaged by the landslide. Defendants argue that Plaintiffs cannot achieve this injunctive relief with only the present parties as this action does not include all lots within the watershed. They further argue that the City of Orinda, who owns and maintains the street, and EBMUD, who maintains pipelines and trenches in the road prism of Cedar Lane are indispensable parties. However, the SAC is not directed towards the entire watershed and it is unclear that the participation of every property owner within

the watershed is necessary to effect Plaintiffs' requested relief. The Court declines to grant the motion on this ground.

For the foregoing reasons, the motion is **DENIED**.

Evidentiary Objections

The Court rules only on those objections material to the Court's ruling on the motion for summary judgment. (Code Civ. Proc. § 437c(q).)

Plaintiffs' Objections to Evidence:

Objection No. 1: Sustained.

3. 9:00 AM CASE NUMBER: C24-02590
CASE NAME: NEXTGEAR CAPITAL, INC. VS. FARHAD AMINZADA
HEARING ON SUMMARY MOTION
FILED BY: NEXTGEAR CAPITAL, INC.
TENTATIVE RULING:

Before the Court is Defendant NextGear Capital, Inc., a Delaware Corporation ("NextGear" or "Defendant")'s Motion for Summary Judgment or in the alternative Summary Adjudication. The Motion relates to Plaintiff Area Target Used Cars, LLC ("Plaintiff" or "Area Target")'s First Amended Complaint for (1) Breach of Written Purchase Contracts; (2) Breach of Fiduciary Duty; (3) Claim and Delivery / Replevin; (4) Declaratory Relief; and (5) Injunctive Relief. Only the third, fourth, and fifth causes of action are alleged against Defendant. Plaintiff has not opposed the Motion.

For the following reasons, Defendant's unopposed motion for summary judgment is **GRANTED**.

Standard

The party moving for summary judgment has the burden of persuasion to show there is no triable issue of material fact and thus it is entitled to judgment as a matter of law. (*Aguilar v. Atlantic Richfield Co.* (2001) 25 Cal.4th 826, 850.)

Only if the moving party successfully meets this burden does the burden shift to the opposing party to make its own prima facie showing of the existence of a triable issue of material fact. (*Ibid.*; see also *Chern v. Bank of America* (1976) 15 Cal.3d 866, 873.) Even though the instant motion is unopposed, the Court cannot grant summary judgment unless Defendant meets the initial burden. (See *Johnson v. Superior Court* (2006) 143 Cal.App.4th 297, 305 [trial court order granting summary judgment reversed despite lack of timely-filed declaration that was proper under CCP § 2015.5 because unless defendant meets his initial burden, summary judgment cannot be granted "even if the opposing party does not respond sufficiently or at all."].) The scope of the initial burden is defined by the pleadings. (See *580 Folsom Assocs. v. Prometheus Dev. Co.* (1990) 223 Cal. App. 3d 1, 18.)

Brief Factual and Procedural Background

Next Gear as Plaintiff in C24-02590 filed its initial complaint on September 30, 2024 followed by an amended complaint on October 3, 2024. The First Amended Complaint in C24-02590 alleges causes of action against Defendant US City Auto, Inc. dba Bay Motors and Defendant Farhad Aminzada for (1) Breach of Demand Promissory Note and Security Agreement, (2) Breach of Individual Guaranty